

**IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION**

TRANSFER PETITION (CIVIL) NO.3325/2025

PRATIBHA RANI

PETITIONER

VERSUS

JATIN KAPOOR

RESPONDENT

WITH

TRANSFER PETITION (CRIMINAL) NO.1103/2025

TRANSFER PETITION (CRIMINAL) NO.90/2026

O R D E R

- 1.** Heard.
- 2.** These proceedings relate to a transfer petition filed by the wife seeking a transfer of the divorce proceedings initiated by the respondent – husband in H.M.A Petition No.1253/2025.
- 3.** Considering the relationship between the parties, this Court was of the view that the parties can explore the possibility of arriving at a settlement. Accordingly, settlement talks have been held and after lengthy discussions and deliberations, the parties have settled their dispute, and in furtherance of the same, an agreement has been entered into between the parties on 12.05.2026. The terms as agreed to between the parties are as under:

"5. Both the parties hereto have arrived at an amicable settlement on the following terms and conditions for dissolution of marriage by mutual consent: -

A. That the parties have agreed that the Respondent-husband will pay to the Petitioner-wife a total sum of Rs. 17,00,000/- (Rupees Seventeen Lakhs Only) towards full and final settlement of all her claims (past, present, future) towards her permanent alimony, Stridhan, maintenance (past, present, future) and any other claim whatsoever and upon payment of the same, no further amount shall be payable by the Respondent - husband towards the Petitioner - Wife.

B. Both the parties have agreed to exchange all the Ornaments/Jewelleries under proper receipt and acknowledgment at the Supreme Court Mediation Centre in the presence of Ld. Mediator, Ms. Mamta Rani, on the date of signing of the present settlement agreement, as per the lists annexed herewith and marked as **ANNEXURE - 1 (List of items by the Petitioner - Wife) and ANNEXURE - 2 (List of items by the Respondent - Husband).**

C. It is agreed that the Respondent - husband will pay to the Petitioner/ Wife a total sum of Rs.17,00,000/- (Rupees Seventeen Lakhs Only) via Demand Drafts in the account Bearing No. 0681001500275788, IFSC Code - PUNB068100, Branch Haldaur, District Bijnor - Uttar Pradesh, towards full and final settlement of her all the past, present and future claims.

AND /OR

The Respondent-husband will pay the said and agreed amount of Rs.17,00,000/- (Rupees Seventeen Lakhs Only) in as per the following payment schedule: -

I. The Respondent - husband shall pay an amount of **Rs.4,00,000/- (Rupees Four Lakhs only)** in favour of the Petitioner/ wife by way of Demand Draft in the aforesaid bank account at the time of signing of the present settlement agreement in the Supreme Court Mediation Centre.

II. The Respondent shall pay an amount of **Rs.4,00,000/- (Rupees Four Lakhs only)** in favour of the Petitioner/ wife by way of Demand Draft in the aforesaid bank account at the time of passing of the order of withdrawal in the Domestic Violence case bearing no. Criminal Misc. Case No. 656/2024.

III. The Respondent - husband shall pay an amount of **Rs.4,00,000/- (Rupees Four Lakhs only)** in favour of the Petitioner/ wife by way of Demand Draft in the aforesaid bank account at the time of passing of the order of withdrawal in the Maintenance Petition under Section 125 Cr.P.C., 1973 bearing Criminal Misc. Case No. 178/2024 along with Execution of the Maintenance Petition bearing No. Criminal Misc. Case No. 690/2025.

IV. The Respondent - husband shall pay the final amount of **Rs.5,00,000/- (Rupees Five Lakhs only)** in favour of the Petitioner/ wife by way of Demand Draft in the aforesaid bank account at the time of Quashing, of the Warrant or Summons Case Petition No. 588/2025 arising out of FIR No. 089/2024 at P.S. -

Haldaur, U.P., by the Hon'ble High Court of Judicature at Allahabad, U.P.

D. It is agreed between the parties that they will move an application jointly before the Hon'ble Supreme Court under Article 142 of the Constitution of India, 1950 for invoking inherent powers of the Hon'ble Supreme Court thereby praying for divorce by mutual consent as parties are staying separately since 24.12.2023 i.e. for the last more than three years and there is irretrievable break down of the marriage. That the Petitioner - Wife further agrees to co-operate in the divorce case.

E. It is further agreed between the parties that they shall make sincere efforts in order to withdraw all their respective cases filed by them against each other within 3 months from the date of signing of the present settlement agreement and both parties will cooperate to each other in withdrawal proceeding of their respective cases.

6. That the Petitioner - Wife agrees to enter appearance before the Hon'ble High Court of Judicature at Allahabad, U.P. at the time of hearing of the Quashing Petition.

7. That the Petitioner and the Respondent have agreed that none of them will initiate any other legal action or complaint (including but not limited to, defamation, civil or criminal proceeding) against each other or against the family members of each other in respect of their matrimonial dispute in future.

8. That the parties agree to not cause any interference in each other's personal life and will maintain dignity and refrain from causing any sort of harassment or coercion.

9. That subject to the aforesaid terms, the parties have resolved all the disputes amicably in relation to the marriage and have been left with no claims against each other or their respective family members.

10. That by signing this Agreement the parties hereto solemnly state and affirm that they have no further claims or demands against each other including maintenance, or any movable or immovable property and all the disputes and differences have been amicably settled by the parties hereto through the process of mediation.

11. The parties undertake to abide by the terms and conditions set out in the above mentioned Settlement Agreement, which have been arrived with free will of the parties without any coercion, duress or collusion and parties undertake not to raise any dispute whatsoever henceforth.

12. The contents of this settlement - agreement have been explained to all the parties through their respective counsels and they have understood the same."

4. Both parties are present before the Court.

- 5.** This Court, having interacted with them, is satisfied that the parties have understood the contents of the settlement agreement and they have affixed their signatures voluntarily without any force, threat, or coercion.
- 6.** The petitioner wife acknowledges the receipt of the amount as indicated in the settlement agreement and also acknowledges the receipt of Rs.17 Lakhs in full and final settlement and against all her claims and she specifically states that she has no further claims either against the respondent or his family members or anyone else connected with their matrimonial dispute.
- 7.** The learned counsels, in token of having identified the parties, have also affixed their signatures to the settlement agreement.
- 8.** The parties have agreed that the litigations which are pending before various courts can be put to an end namely the following cases:

“(i) Respondent/ husband has filed Divorce Petition being HMA no. 1253 of 2025 before the Karkardooma Court at East Delhi.

(ii) Respondent's mother, Mrs. Seema Kapoor, has filed Criminal Case No. 573 /2025 pending before Karkardooma Court, East Delhi against Maya Devi - Petitioner's mother and their family members under Section 115, 127, 331(5) of the Bharatiya Nyaya Sanhita (BNS), 2023.

(iii) Respondent's mother, Mrs. Seema Kapoor, has filed D.V. Case No. 204/2025 pending before Karkardooma Court, East Delhi against Pratibha Rani and their family members.

(iv) Petitioner/Wife has filed Warrant or Summons Case Petition No. 588/2025 pending before Ld. ACJM – 2nd Court, District Court, Bijnor, U.P., arising out of FIR No. 089/2024 under Sections 498A, 323, 354, 504, 506 of the IPC, 1860 at P.S. – Haldaur, U.P.

(v) Petitioner/Wife has filed Maintenance Petition under Section 125 Cr.P.C., 1973 bearing Criminal Misc. Case No. 178/2024, pending before the Ld. Addl. Principal Judge, Family Court, District Court, Bijnor, U.P.

(vi) Petitioner/Wife has filed Execution of the Maintenance Petition bearing No. Criminal Misc. Case No. 690/2025 under Section 147 of BNSS, 2023 pending before the Ld. Addl. Principal Judge, Family Court, District Court, Bijnor, U.P.

(vii) Petitioner/Wife has filed Domestic Violence case bearing no. Criminal Misc. Case No. 656/2024 under Sections 18, 19, 20, 21, 22,

9. In the light of the aforesaid facts, we are of the considered view that we have no impediment to accept the said settlement agreement.

10. All attempts having been made for reunion having failed, and both parties being well-educated and being *ad idem* on the issue of parting their ways, we are of the considered view that continuation of their marriage would only be an exercise in futility and as such, in exercise of our power vested under Article 142 of the Constitution of India, we dissolve the marriage between the petitioner and the respondent held on 27.01.2023.

11. In view of the settlement arrived at and both parties having agreed for resolving their disputes, continuation of these proceedings and the aforesaid various litigations would not be warranted. They stand closed, quashed and disposed of. The jurisdictional courts to consign the records accordingly. Transfer Petition stands disposed of.

12. In view of the settlement arrived at between the parties, Transfer Petition (Criminal) Nos.1103/2025 and 90/2026 would not survive for consideration. Hence, they are also disposed of accordingly.

13. Registry to draw the decree of divorce in the above terms.

14. Pending application(s), if any, shall stand disposed of.

.....J.
(ARAVIND KUMAR)

.....J.
(VIPUL M. PANCHOLI)

NEW DELHI;
AUGUST 07, 2026.

ITEM NO.50

COURT NO.12 SECTION XVI-A
S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS
Transfer Petition(s) (Civil) No(s).3325/2025

PRATIBHA RANI

Petitioner(s)

VERSUS

JATIN KAPOOR

Respondent(s)

[MEDIATION REPORT RECEIVED]

IA No. 172439/2026 - APPLN. UNDER SEC 142 OF THE CONSTITUTION R/W
SEC 13B OF H.M.A.

IA No. 69937/2026 - EXEMPTION FROM FILING O.T.

IA No. 303221/2025 - STAY APPLICATION

WITH

T.P.(Crl.) No. 1103/2025 (XVI-A)

IA No. 306877/2025 - STAY APPLICATION

T.P.(Crl.) No. 90/2026 (XVI-A)

IA No. 30172/2026 - EX-PARTE STAY

Date : 07-08-2026 These matters were called on for hearing today.

CORAM : HON'BLE MR. JUSTICE ARAVIND KUMAR
HON'BLE MR. JUSTICE VIPUL M. PANCHOLI

For Petitioner(s) : Mr. Puneet Dhawan, AOR
Mr. Chirag Mittal, Adv.

For Respondent(s) : Mr. Sanjay Jain, AOR
Mr. Amber Jain, Adv.
Mr. Sunny Sachin Rawat, Adv.

Mr. Niteen Kumar Sinha, AOR
Mr. Prashant Gautam, Adv.
Mr. Prasanna Mohan, Adv.
Mr. Ram Avtar Sharma, Adv.
Mr. Maneesh Saxena, Adv.

UPON hearing the counsel the Court made the following
O R D E R

Transfer Petitions stand disposed of in terms of the signed order placed on
the file.

Pending application(s), if any, shall stand disposed of.

(NEHA GUPTA)
COURT MASTER (SH)

(AVGV RAMU)
COURT MASTER (NSH)